

APPENDIX E - FORM FAM-PD #7-4
(Family Practice Directive #7)

COURT FILE NUMBER _____

COURT OF KING'S BENCH FOR SASKATCHEWAN

(FAMILY LAW DIVISION)

JUDICIAL CENTRE _____

PETITIONER _____

RESPONDENT _____

NOTICE OF JUDICIAL CASE CONFERENCE
(FAMILY LAW PROCEEDING)

TAKE NOTICE THAT a Judicial Case Conference [JCC] will be held at the following place, date and time:

Address of court house:	
Date: (dd/mmm/yyyy):	
Time:	

This notice is being provided in response to a Request for a Judicial Case Conference filed by _____ on _____.

Pursuant to the order of the Honourable Justice _____, this notice shall be served on the opposing party:

- ☐ at least seven (7) days prior to the date of the Judicial Case Conference; or
- ☐ at least _____ days prior to the date of the Judicial Case Conference.

AND FURTHER TAKE NOTICE:

1. Attendance is mandatory:

- a) The parties are required to attend the JCC at the court house on the date and time identified. When a party is represented by a lawyer, the lawyer can attend on the party's behalf, although the judge may require the parties to be present. If a party is not represented by a lawyer, the party is required to attend in person at the court house. Parties or their lawyers may request leave to appear by phone by contacting the Family Law Screening Officer at the appropriate judicial centre at least one (1) day prior to the date set for the JCC.

- b) If you are the party requesting the JCC and you fail to attend, the presiding judge may direct that no further case conference be scheduled without renewing your request or may make an order in your absence. Costs may also be awarded against you.
 - c) If you are the opposing party and you fail to attend, the presiding judge may make an order in your absence. Costs may also be awarded against you.
 - d) If all parties consent to adjourn the JCC, you shall contact the Family Law Screening Officer to arrange for another date and time to be set at least one (1) day prior to the date set for the JCC.
 - e) If you want to adjourn the JCC but the other party will not agree, you should advise the court that you wish to seek an adjournment in your Judicial Case Conference Memo in form FAM PD #7-5 and be prepared to speak to the issue at the start of the case conference.
2. Materials to be filed:
- a) All parties shall serve and file a Judicial Case Conference Appearance Memo in form FAM PD #7-5 at least two (2) days prior to the date scheduled for the JCC.
 - b) The parties shall not serve or file a notice of application or affidavit in support of an application prior to the JCC.
3. What to expect at the JCC:
- a) There will be a number of matters set at the prescribed time. These matters will proceed in the order directed by the presiding judge.
 - b) At the case conference, the participants may consider:
 - i. compliance with Part 15 of *The King's Bench Rules* respecting disclosure or otherwise;
 - ii. dispute resolution possibilities, the process for them and how they can be facilitated;
 - iii. simplification or clarification of a claim, a pleading, a question, an issue, an application or a proceeding;
 - iv. setting or adjusting dates by which a stage or a step in the action is expected to be complete;
 - v. case management by a judge;
 - vi. practice, procedural or other issues or questions and how to resolve them;
 - vii. any other matter that may aid in the resolution or facilitate the resolution of a claim, application or proceeding or otherwise meet the purpose and intention of the rules described in Rule 15-3.
 - c) The presiding judge may:
 - i. make a procedural order;

- ii. make a substantive order with the consent of the parties;
 - iii. schedule another JCC;
 - iv. set the date and time for a chambers hearing including identifying the issues in dispute, setting filing deadlines and providing direction on the supporting affidavit materials or other evidence to be filed and setting time limits on oral arguments; and/or
 - v. direct that the local registrar schedule a pre-trial settlement conference or trial.
4. The presiding judge will make an endorsement on the file at the conclusion of the JCC. A copy of the endorsement will be sent to the parties at the address for service identified in the Judicial Case Conference Appearance Memo filed by each party. The endorsement will include any orders made by the presiding judge at the case conference.

DATED at _____, Saskatchewan, this _____ day of _____, 2_____.

(signed by DRL/ Screening Officer)

INFORMATION NOTE

The process for Judicial Case Conferences [JCC] in the Regina and Saskatoon Judicial Centres is set out in Family Practice Directive #7, which can be found at the following link: <https://sasklawcourts.ca/kings-bench/rules-practice-directives/>. Additional information on JCCs can be found in the Guide to Judicial Case Conferences at the following link: <https://sasklawcourts.ca/kings-bench/rules-practice-directives/>. Family Practice Directive #7 and the Guide to Judicial Case Conferences are also available in the Registrar's Offices in Saskatoon and Regina.

If you have questions or require information about the JCC process, or wish to adjourn the JCC with the consent of all parties, please contact the Family Law Screening Officer in the appropriate judicial centre:

Saskatoon	Regina
Brenden Prokopchuk Email: brenden.prokopchuk@gov.sk.ca Phone: 306-933-7303 Fax: 306-933-5703	Carly Sigda-Holyoak Email: carly.sigdaholyoak@gov.sk.ca Phone: 306-787-5418 Fax: 306-787-7217

If you have questions or need information about family violence and supports for people experiencing family violence, please contact the Family Law Screening Officer to book an intake assessment.